

STATE OF NEW YORK

5116--A

2025-2026 Regular Sessions

IN SENATE

February 19, 2025

Introduced by Sen. CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to the documentation and preservation of Black history in New York state by the state university of New York

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 355-f
2 to read as follows:

3 § 355-f. The documentation and preservation of Black history in New
4 York state by the state university of New York. 1. Legislative intent.
5 The state of New York recognizes how Black New Yorkers and particularly
6 communities like Harlem have shaped the state's cultural, social, and
7 historical identity. Black communities have been a part of New York's
8 development from enslavement to Reconstruction, through the inequities
9 of Jim Crow, the Civil Rights Movement, and the continuous struggle for
10 equity today. The state acknowledges that gentrification and the under-
11 representation of Black history have caused the Black community to be
12 uprooted and to lose its history. Fortunately, we currently have the
13 privilege of hearing first-hand stories from people who were present at
14 important moments in the Black liberation movement. Their personal
15 accounts are priceless evidence of determination, advocacy, and
16 progress. If we do not take immediate action to protect these voices we
17 run the risk of losing an important piece of our history. This section
18 aims to build a record of the impact of these communities on the forma-
19 tion of the state and to provide methods for the teaching, recording,
20 and preservation of Black history.

21 2. Commission formation and goals. (a) Subject to amounts available by
22 appropriation, the New York state Black history preservation commission,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 hereinafter "commission", is hereby created within the state university
2 of New York. The purposes of the commission shall include:

3 (i) advancing the understanding and awareness of Black history,
4 particularly the history and contributions of Black communities in New
5 York state through educational programs and resources;

6 (ii) documenting, preserving, and circulating historical materials
7 about Black history in New York;

8 (iii) guaranteeing that Black New Yorkers' perspectives and contrib-
9 utions are heard by collaborating with cultural institutions and histor-
10 ical groups; and

11 (iv) advocating for legislative support to fund, promote, and sustain
12 initiatives related to the preservation and education of Black history
13 within New York.

14 (b) The commission shall consist of ten members including the commis-
15 sioner, the chancellor of the state university or their designee, two
16 at-large members appointed by the governor, two members appointed by the
17 temporary president of the senate, two members appointed by the speaker
18 of the assembly, one member appointed by the minority leader of the
19 senate, and one member appointed by the minority leader of the assembly.
20 Appointed members shall serve for a term of three years, provided that
21 such members may be reappointed. Any vacancy in the board shall be
22 filled for the unexpired term in the same manner as the original
23 appointment. Members of the board shall not receive compensation for
24 their services as members, but shall be allowed their actual and neces-
25 sary expenses incurred in the performance of their duties.

26 (c) The chancellor of the state university of New York shall serve as
27 chair of the commission to provide institutional support and ensure the
28 project aligns with the goals of the state university of New York
29 system.

30 (d) The commission shall prepare and submit a report within one year
31 of the effective date of this section and every year thereafter to the
32 governor and the legislature describing programs undertaken or sponsored
33 by the commission, the status of knowledge regarding the history and
34 contributions of Black history in New York, and research needs related
35 thereto.

36 (e) The commission shall meet publicly at least twice a year. The
37 committee shall widely disseminate notice of its meetings at least two
38 weeks prior to each meeting. The members of the commission and the chan-
39 cellor of the state university shall aid in such dissemination.

40 (f) The state university of New York shall assist the commission in
41 achieving these objectives through joint research initiatives, public
42 awareness campaigns, and the creation of educational materials to ensure
43 greater awareness and understanding of Black history creating a more
44 inclusive and accurate representation of New York's diverse history.

45 § 2. This act shall take effect on the ninetieth day after it shall
46 have become a law. Effective immediately, the addition, amendment and/or
47 repeal of any rule or regulation necessary for the implementation of
48 this act on its effective date are authorized to be made and completed
49 by the commissioner of education on or before such effective date.